

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                  |                                     |                           |                                                       |                                               |                                 |
|--------------------------------------------------|-------------------------------------|---------------------------|-------------------------------------------------------|-----------------------------------------------|---------------------------------|
| Investigator:<br>Elizabeth Johnson               | Team:<br>Team # 6                   | CCRB Case #:<br>201002483 | <input type="checkbox"/> Force                        | <input checked="" type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                  |                                     |                           | <input checked="" type="checkbox"/> Abuse             | <input type="checkbox"/> O.L.                 | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Tuesday, 02/23/2010 7:10 PM  | Location of Incident:<br>§ 87(2)(b) | 18 Mo. SOL<br>8/23/2011   | Precinct:<br>120                                      |                                               |                                 |
| Date/Time CV Reported<br>Wed, 02/24/2010 9:02 AM | CV Reported At:<br>CCRB             | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Wed, 02/24/2010 9:02 AM |                                               |                                 |

| Complainant/Victim | Type       | Home Address |
|--------------------|------------|--------------|
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |

| Witness(es) | Home Address |
|-------------|--------------|
| § 87(2)(b)  | § 87(2)(b)   |

| Subject Officer(s)   | Shield | TaxID  | Command |
|----------------------|--------|--------|---------|
| 1. POM Rudy Anzalone | 27189  | 945472 | 120 PCT |
| 2. POM Besim Pelinku | 29412  | 946100 | SI IRT  |

| Officer(s)            | Allegation                                                  | Investigator Recommendation |
|-----------------------|-------------------------------------------------------------|-----------------------------|
| A . POM Rudy Anzalone | Abuse: PO Rudy Anzalone entered § 87(2)(b)                  | A . Complaint Withdrawn     |
| B . POM Besim Pelinku | Abuse: PO Besim Pelinku entered § 87(2)(b)                  | B . Complaint Withdrawn     |
| C . POM Rudy Anzalone | Discourtesy: PO Rudy Anzalone spoke obscenely to § 87(2)(b) | C . Complaint Withdrawn     |

### Case Summary

On February 24, 2010, § 87(2)(b) phoned in this complaint to the CCRB § 87(2)(b) is an § 87(2)(b). As an official statement was not obtained from § 87(2)(b) the details of the incident were gathered from the original complaint.

On February 23, 2010, at approximately 7:10pm, two uniformed police officers and an EMS worker arrived at § 87(2)(b)'s residence, located at § 87(2)(b) in Staten Island. § 87(2)(b) read the officers' shields and identified them as PO Anzalone of shield number 27189, and PO Pelinku of shield number 29412, both from the 120<sup>th</sup> Precinct.

PO Anzalone and PO Pelinku explained to § 87(2)(b) that they had received a call from a child in the house. § 87(2)(b) told the officers that there was no child. PO Anzalone and PO Pelinku asked to enter the residence and § 87(2)(b) told them that they could not and asked for a search warrant. PO Anzalone and PO Pelinku said they did not need a search warrant and then allegedly pushed into the house (**Allegations A and B**). PO Anzalone and PO Pelinku were in the vestibule of the house and § 87(2)(b) would not let them go any further. § 87(2)(b) told the officers that it was only he and his wife in the house. § 87(2)(b) then produced his child and the officers' demeanor changed and they were no longer concerned for the safety of a child. § 87(2)(b) told the officers that he would take them upstairs to see if there was a child, but since he showed them his shield they refused. As PO Anzalone and PO Pelinku were leaving, § 87(2)(b) told them that he was going to call the DA's Office because of their actions. PO Anzalone told him that he would give him the DA's Office phone number and allegedly said that he "did not give a fuck" if he called them (**Allegation C**). § 87(2)(b) explained that he and members of the community had recently organized to close down a local bar and he believed that the people associated with the bar are making fraudulent calls to the police to prompt this type of police action in retaliation.

§ 87(2)(b) provided the names and shield numbers of the officers. Searches of CTS confirmed the identities of PO Rudy Anzalone and PO Besim Pelinku as the officers. The 120<sup>th</sup> Precinct ARCS from February 23, 2010 confirmed that both PO Anzalone and PO Pelinku were on duty. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

On February 25, 2010, a search of the Department of Corrections website confirmed that § 87(2)(b) was not incarcerated. On February 25, 2010, a contact letter was mailed to § 87(2)(b) and was not returned to the agency. On February 26, 2010, a telephone call was placed to § 87(2)(b) at his home telephone number, during which both mediation and investigation were discussed. § 87(2)(b) asked for additional time to consider how he would like to pursue his complaint, and agreed to call back on March 1, 2010. On March 1, 2010, § 87(2)(b) called the undersigned and stated that he would like to pursue investigation, and scheduled an appointment for March 12, 2010. On March 12, 2010, § 87(2)(b) called and stated that he would not appear for his appointment, as he would like to withdraw his complaint. § 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) stated that he was not coerced by a member of the NYPD or CCRB in withdrawing his complaint, and that he withdrew his complaint voluntarily. His withdrawal statement was recorded in digital file 201002483\_20100319\_1011.WAV in IA 11, and has been reviewed by ASI Bobe-Saleh. On March 12, 2011, a withdrawal letter was mailed to § 87(2)(b) and will be added to the case file upon its return. It is therefore recommended that **Allegations A through C** be closed **Complaint Withdrawn**.

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Team: 6

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Investigator: \_\_\_\_\_ Elizabeth Johnson \_\_\_\_\_  
Signature Print Date

Supervisor: \_\_\_\_\_  
Title/Signature Print Date

Reviewer: \_\_\_\_\_  
Title/Signature Print Date

Reviewer: \_\_\_\_\_  
Title/Signature Print Date